



December 14, 2023

Initiative 23-0035

RECEIVED

Anabel Renteria
Initiative Coordinator
Office of the Attorney General
1300 I Street, 17th Floor
Sacramento, CA 95814

Dec 18 2023

INITIATIVE COORDINATOR
ATTORNEY GENERAL'S OFFICE

Re: Submission of text amendment and request for title and summary of ballot initiative, "*The Common Sense Initiative to Protect California Kids Online.*"

Dear Ms. Renteria,

Pursuant to California Elections Code, please find enclosed the text, proposed title, and proposed summary of a ballot initiative for the Nov. 5, 2024 election. In addition, I am enclosing a check for \$2,000 as required for the filing of a ballot initiative.

I am the proponent of the measure and request that the Attorney General prepare a circulating title, and summary of the chief purpose and points of the initiative as provided by law using the language below.

Please contact me or my chief of staff, Robbie Tourney, for any reason regarding this request at the contact information provided here.

Thank you for your assistance with this request.

A handwritten signature in blue ink that reads "Jim Steyer".

James P. Steyer
Founder and CEO, Common Sense Media
699 8th Street, Suite C150
San Francisco, CA 94103

Contact: Robbie Torney, Chief of Staff
(505) 310-9160
rtorney@commonsense.org



Proposed Ballot Initiative Title:

Common Sense Initiative to Protect California Kids Online

Proposed Summary:

This initiative would protect California kids and teens from specific online harms by holding large social media platforms financially accountable for knowingly offering products that foreseeably cause harm to kids.

Proposed Initiative Text:

SECTION 1.

Subdivision 1714(e) is added to Section 1714 of the Civil Code, to read:

(e) (1) The people of the State of California find as follows:

(A) The biggest social media platforms invent and deploy features they know harm large numbers of children, including contributing to child deaths.

(B) The costs of these harms are unfairly being paid by parents, schools, and taxpayers, not the platforms.

(C) Current law, subdivision (a), already makes every person and corporation, social media platforms included, financially "responsible " "for an injury occasioned to another by his or her want of ordinary care or skill in the management of his or her property or person[.]"

(D) This legislation is necessary to ensure that the social media platforms that are knowingly causing the most severe harms to largest number of children are more financially motivated than they are now to prevent harm from occurring to children in the first place.

(2) A social media platform that knowingly violates its responsibility of ordinary care and skill to a child pursuant to subdivision (a) shall, in addition to any other remedy, be liable for statutory damages of either:

(A) one thousand dollars (\$5,000) per violation up to a maximum, per child, of one million dollars (\$1,000,000.); or

(B) three times the amount of the child's actual damages.

(3) Any waiver of this section is prohibited.

(4) For purposes of this section:

(A) "Child" means a minor under eighteen (18) years of age.

B) "Social media platform" means a platform as defined in Section 22675 of the Business and Professions Code that generates more than one hundred million (\$100,000,000) per year in gross revenues.

(5) This act shall be construed to provide the maximum protection of the health, safety, and well-being of children permissible under federal statutes and the United States and California Constitutions.



(6) The provisions of this section are severable. If any provision of this section or its application is held invalid, that invalidity shall not affect other provisions or applications that can be given effect without the invalid provision or application.

(7) The duties, remedies, and obligations imposed by this act are cumulative with any other duties or obligations imposed under other law and shall not be construed to relieve a platform from any duties or obligations imposed under any other law.

(8) The Legislature may amend this initiative by majority vote but only to either increase the amount of statutory damages or expand the liability of platforms.